

ROBERT J. MILLER¹

Arizona State University

THE INTERNATIONAL LAW OF COLONIALISM: THE DOCTRINE OF DISCOVERY

Abstract

Six hundred years ago, the Church and Spain and Portugal began developing the international law of Christian European colonization. That law is better known today as the Doctrine of Discovery. Joined by England, France, Russia, and Holland, European countries used this law to claim and acquire the lands, assets, sovereign rights, and even the existence of Indigenous nations and peoples. When the United States was formed, it also adopted this colonizing legal regime. This international law still applies today and is very relevant to Indigenous nations and peoples and seriously impacts their rights and existence even now. This chapter lays out the ten elements, or factors, that comprise the Doctrine. These elements were clearly defined and applied by the United States Supreme Court in the landmark Indian law case of *Johnson v. M'Intosh* in 1823.

Keywords: *Doctrine of Discovery, international law of colonialism, Johnson v. M'Intosh, first discovery, actual occupancy and possession, preemption, Native title, Indigenous limited sovereign and commercial rights, contiguity, terra nullius, Christianity, civilization, conquest*

¹ Jonathan & Wendy Rose Professor of Law, Sandra Day O'Connor College of Law, Arizona State University; Chief Justice, Pascua Yaqui Tribe; Citizen, Eastern Shawnee Tribe.

THE INTERNATIONAL LAW OF COLONIALISM: THE DOCTRINE OF DISCOVERY

The Doctrine of Discovery is the international law that governed to a great degree how European Christian countries claimed dominion over the lands and assets of non-Christian nations and peoples around the world and was used to establish colonies in those lands. The Doctrine is one of the earliest forms of international law; *i.e.*, laws that control the conduct of nations vis-à-vis each other. Other examples of early international law include the law of war and the law of the sea.³

In the early 1400s, the Catholic Church, Portugal, and Spain began developing the Doctrine of Discovery in response to Spain and Portugal's disputes over controlling and colonizing the Canary Islands. Ultimately, various popes issued papal bulls setting out the initial "rules" of international law for how Spain and Portugal would colonize and exploit the entire non-Christian world. In 1436, Pope Eugenius IV issued a bull granting the Canary Islands to Portugal.⁴ In 1452-55, popes issued other bulls that extended Portugal's rights to legally colonize, control, and even enslave Indigenous non-Christian peoples in western Africa.⁵ After Columbus allegedly "discovered" a New World in the Americas, Pope Alexander VI issued papal bulls in 1493 that granted most of the New World to Spain and drew a line from the north to the south poles in the Atlantic Ocean that divided the known world for the exclusive control and colonization of Spain and Portugal.⁶ Needless to say, England, France, and Holland contested these exclusive Discovery rights for Spain and Portugal and actively fought against them. We will not cover that extensive multi-century history. Suffice it to say, that the European Christian countries came to an understanding through collective greed, and international law, on how they would divide up the non-Christian world.

This international law of colonization was analyzed and applied by the United States Supreme Court in 1823 in the case of *Johnson v. M'Intosh*.⁷ This was the Supreme Court's first Indian law case and its first chance to analyze the Doctrine of Discovery. The case involved attempted purchases of Indian owned lands by British citizens in 1773 and 1775. It is worth noting that the United States did not yet officially exist, therefore, this 1823 case really concerned the validity of these attempted land purchases under English and international law, *i.e.*, the Doctrine of Discovery. In a nutshell, the U.S. Supreme Court held that because of the Doctrine, tribal nations did not own the full fee-simple title to their lands and could not sell the fee title to these individual private buyers. The Court also held that individuals had no right to buy land directly from Indians or Indian nations because the Doctrine had passed the right to

² Jonathan & Wendy Rose Professor of Law, Sandra Day O'Connor College of Law, Arizona State University; Chief Justice, Pascua Yaqui Tribe; Citizen, Eastern Shawnee Tribe.

³ Robert J. Miller, *Native America, Discovered and Conquered: Thomas Jefferson, Lewis & Clark, and Manifest Destiny* (Westport, CT: Praeger, 2006), 9-23.

⁴ Robert A. Williams Jr., *The American Indian in Western Legal Thought: The Discourses of Conquest* (New York: Oxford University Press, 1990), 72.

⁵ Bull "Romanus Pontifex" of Pope Nicholas V Granting the Territories Discovered in Africa to Portugal (Jan. 8, 1455), in *Church and State through the Centuries*, trans. and ed. Sidney Z. Ehler and John B. Morrall (New York: Biblo and Tannen, 1967), 144, 145, 149-50.

⁶ *The Bull Inter Caetera (Alexander VI) (May 3, 1493)*, in *European Treaties Bearing on the History of the United States and Its Dependencies*, ed. Frances Gardiner Davenport (Washington, DC: Carnegie Institution, 1917), 9, 23.

⁷ *Johnson v. M'Intosh*, 21 U.S. (8 Wheat.) 543 (1823).

purchase such lands to the European discovering nation. As the Court pointed out, European nations could trade these rights to be the sole purchaser of Indigenous lands via treaties and, in fact, that is exactly how the United States ultimately acquired the rights of the Doctrine of Discovery in North America from England, France, Spain, and Russia.

In the *Johnson* case, the Court summarized and then applied four hundred years of international law and colonization to the Indigenous nations and peoples within what is now the United States. *Johnson* is still the law in the United States today and has greatly influenced the law and histories of other settler colonial countries.⁸ *Johnson* has been cited dozens of times by courts in Australia, Canada, and New Zealand, as well as by the British Privy Council.

I have researched and written extensively about the Doctrine and *Johnson v. M'Intosh*. I perceive that the Supreme Court relied on ten elements or factors to define this international law and to make its decision. A close examination of the history and laws of any colonized country demonstrates that since the early 1400s European colonizing countries have used the Doctrine and its constituent elements around the world. I have used these elements, in fact, to examine in detail how colonization occurred in the United States, Australia, Canada, New Zealand, Chile, Brazil, and eastern Africa. All of the elements of Discovery that are defined in *Johnson v. M'Intosh* were used in these colonized countries and many of them are still present in the modern-day laws and official policies of these countries.⁹

Common-law court systems often break down crimes and torts into their underlying elements. My co-authors and I have used a similar method to examine the ten distinct elements of the Doctrine and its legacy. In various books and articles, we have used these elements and factors to compare how England, and its colonial heirs, applied the Doctrine and its elements in Australia, Canada, New Zealand, and the United States, and how those elements are still being used today against Indigenous nations and peoples. We have also analyzed how Portugal, Spain, England, and Germany used that international law and its elements to colonize Brazil, Chile, and East Africa. One significant example of the Doctrine in the United States is worth highlighting. In 1803-06, President Thomas Jefferson used the elements of the Doctrine and the Lewis & Clark expedition to strengthen the United States' Discovery claim to the Oregon Country/Pacific Northwest. I have also argued that the Doctrine led directly to American Manifest Destiny. Consequently, the Doctrine of Discovery and its constituent elements have played major roles in the colonization of many countries around the world and are omnipresent in the modern-day laws, policies, and cultures of settler colonial societies.

Understanding these elements is crucial to understanding worldwide colonization and its continued effects on Indigenous nations and peoples. In this chapter, I will name and briefly describe these elements as they were defined and used by the U.S. Supreme Court in *Johnson*.¹⁰

⁸ Robert J. Miller, Jacinta Ruru, Larissa Behrendt, and Tracey Lindberg, *Discovering Indigenous Lands: The Doctrine of Discovery in the English Colonies* (New York: Oxford University Press, 2010).

⁹ Miller et al., *Discovering Indigenous Lands*; Miller, *Native America, Discovered and Conquered*, 3-5; Robert J. Miller, Lisa Lesage, and Sebastian López Escarcena, "The International Law of Discovery, Indigenous Peoples, and Chile," *Nebraska Law Review* 89 (2011): 819; Robert J. Miller and Micheline D'Angelis, "Brazil, Indigenous Peoples, and the International Law of Discovery," *Brooklyn Journal of International Law* 37 (2011): 1; Robert J. Miller and Olivia Stitz, "The International Law of Colonialism in East Africa: Germany, England, and the Doctrine of Discovery," *Duke Journal of Comparative & International Law* 32 (2021): 1.

¹⁰ Miller, *Native America, Discovered and Conquered*, 3-5; *Johnson*, 21 U.S. (8 Wheat.), 574-604.

Readers can then compare the elements of this international law against the “legal” and historical colonization of Indigenous nations and peoples in their own and other countries.

1. First discovery. Under the international law of colonialism, the Euro-American country that first discovered lands unknown to other Euro-Americans claimed property and sovereign rights over the lands and the Indigenous peoples. Discovery alone, however, without the discovering country establishing some kind of permanent physical possession, was considered to create only an incomplete and temporary claim to title in the new lands. The race by Europeans, and later the United States, to discover and claim and occupy new lands exemplifies this element. Captain James Cook, for example, buried English coins in bottles in modern-day Alaska, as did the Spanish, to attempt to claim first discovery of newly found lands. The Dutch posted pewter plates on the northwest coast of Australia in the early 1600s claiming ownership and sovereignty of that continent due to first discovery. Russia made the same claims in North America by erecting royal crests and burying numbered metal plates in modern-day Alaska and locations further south. Portuguese explorers erected stone *padroas* along the west coast of Africa and crosses in Brazil to prove where they had allegedly arrived first and to establish their Discovery claims.¹¹

2. Actual occupancy and possession. Queen Elizabeth I of England added this element to the emerging international law of colonialism in the 1550s. She and her attorneys argued for the proposition that for a European country to create an internationally recognized title in newly discovered lands it had to do more than just sail past or visit new lands. Thus, England and France began demanding that Spain and Portugal, for example, had to actually occupy and physically possess newly discovered lands within a reasonable length of time after first discovery to create an internationally recognizable title. England used this principle when it granted charters to its explorers, colonies, and settlers in the United States. Elizabeth I, and her successor James I, directed their settlers to go to lands “unknown to all Christians.” European countries usually established occupation and possession by building forts, trading posts, or settlements. This is one of the primary reasons in fact that Lewis & Clark built Fort Clatsop in 1805 at the mouth of the Columbia River in the Oregon Country. They were trying to solidify the United States’ first discovery claim to this territory by occupying the area.¹²

3. Preemption/European title. The Doctrine assumed that Euro-American countries automatically acquired property and sovereign rights over Indigenous nations merely by arriving in Native lands and planting their flags and religious symbols in the soil. One of the rights claimed by Euro-Americans was the power of preemption, that is, the sole right to buy the lands from the Indigenous nations. The first United States Congress under the Constitution expressly named the right of “preemption” in the Trade and Intercourse Act of 1790, and it insisted on this right in multiple treaties with Indian nations. This one element alone foretold the Supreme Court’s final decision in *Johnson v. M’Intosh* in 1823 that private parties could not buy lands directly from Indian nations and peoples. That was so because the legal right of preemption, and the right to buy the lands, belonged to the discovering Euro-American country. This aspect of Discovery is still United States law today and is reflected in the legal principle that tribal and some lands owned by individual Indians are held “in trust,” that is,

¹¹ Robert J. Miller, “The International Law of Discovery: Acts of Possession on the Northwest Coast of North America,” in *Arctic Ambitions: Captain Cook and the Northwest Passage*, ed. James K. Barnett and David L. Nicandri (Seattle: University of Washington Press, 2015), 191, 195–200.

¹² Miller, *Native America, Discovered and Conquered*, 18–19, 112–13.

Indian trust lands are owned by the United States as the legal owner and the Indian tribe or individual Indian is only the beneficial owner. Because of Discovery and the element of preemption, Indian nations and individual Indians cannot sell, lease, or develop their trust lands without the permission of the United States. This is one of the living embodiments of the Doctrine of Discovery and it is still federal law.¹³

4. Native title. As *Johnson v. M'Intosh* held in 1823, after a first discovery Indigenous nations were considered by Euro-American legal systems to have immediately and automatically lost the full ownership of their lands. Indigenous peoples and nations could occupy and use their lands as long as they existed and remained on the lands, but they did not own the full fee-simple legal title. This alleged change in legal ownership of Native lands occurred without the knowledge or consent of Native nations and without any payment. This form of Indian land ownership is still federal law in the United States today.

5. Indigenous limited sovereign and commercial rights. After a first discovery, Indigenous nations and peoples were considered to have immediately and automatically lost some aspects of their inherent sovereign powers and their rights to engage in international trade, treaty-making, and diplomacy. After discovery by Euro-American Christian nations, Indigenous nations were only supposed to deal with the specific Euro-American government that had "discovered" them. A clear example of this element is provided by the United States' first Secretary of State, and later President, Thomas Jefferson. In communications with a British ambassador in 1792, Jefferson expressly claimed the Discovery rights to control the commercial, diplomatic, and property rights of the Indian nations within the United States to the exclusion of any claim of English rights. Furthermore, in 1831, the U.S. Supreme Court held that American Indian nations are not internationally recognized sovereigns but are instead "domestic, dependent nations" and could engage in trade and treaty-making only with the United States. The U.S. enforced this provision against Indian nations in many treaties and it is still the law today.¹⁴

6. Contiguity. This element of Discovery defined the extent of land Euro-Americans could claim after making a new Discovery. Not surprisingly, they always claimed enormous areas of land contiguous to their actual discoveries and settlements all over the world. In establishing colonies in North America in the early 1600s, England's James I claimed and granted his colonists lands far beyond their actual settlements and even went so far as to claim all the land across the continent from the Atlantic to the Pacific Ocean. In addition, the international law of colonialism stated that when a Euro-American country discovered the mouth of a river that granted it a Discovery claim to the entire drainage system of the river. In 1804, President Thomas Jefferson and the United States made this exact claim to the 800 million acre Louisiana Territory and the drainage system of the Mississippi River. Similarly, in 1846, President James K. Polk made this contiguity claim to the Oregon Country and the drainage system of the Columbia River. England, Russia, and Spain also made these kinds of extravagant contiguity claims on the west coast of North America from California to Alaska.¹⁵

7. Terra nullius. This Latin phrase defines an empty or vacant land. Under the Doctrine, if lands were not possessed or occupied by anyone when a Euro-American country arrived then the

¹³ Ibid, 42, 44-45, 158; Indian Trade and Intercourse Act, 25 U.S.C. § 177 (2024).

¹⁴ Cherokee Nation v. Georgia, 30 U.S. 1, 17 (1831); Miller, *Native America, Discovered and Conquered*, 48, 66-67.

¹⁵ Cherokee Nation, 30 U.S. at 19, 69-70, 119, 147, 153-55; Miller, *The International Law of Discovery*, 195-204.

lands were clearly available for Discovery claims. For example, England claimed all of Australia due to *terra nullius* although Aboriginal peoples had lived there for tens of thousands of years. In 1992, the Australian Supreme Court rejected that Discovery claim as a falsehood in the case of *Mabo v. Regina*. Euro-Americans were of course very liberal in defining Indigenous lands as being “empty” and they often included areas that were in reality populated by Indigenous nations and peoples just like in Australia. In addition, *Johson v. M’Intosh* relied on a second meaning of *terra nullius*: Euro-Americans also considered lands to be empty and available for Discovery claims if the Native peoples living there used or governed their territories in a fashion that Euro-American legal systems disapproved or did not recognize.

8. Christianity. Euro-Americans always used religion as another sign of their alleged superiority over Indigenous peoples and cultures. This is not surprising as the Catholic Church was heavily involved with Spain and Portugal in developing the international law of colonialism in the early 1400s. The papal bulls of 1436 and the early 1450s that granted the Canary Islands and parts of Africa to Portugal, and the 1493 bulls that divided the world for Spanish and Portuguese colonization, declared that Christian conversion was the goal of colonization. Non-Christians were not recognized as having the same rights to land, sovereignty, humanity, and self-determination as Christians. In addition, the papal bulls authorized and justified colonization on the need to convert natives to increase the Christian religion. The United States, and all colonizing countries, justified their empires for centuries by the fact that they “helped” Indigenous peoples by converting them to Christianity. In the Berlin Conference of 1884-85 and the subsequent Berlin Act of 1885, for example, thirteen European countries legally justified carving up Africa for colonies based on the justification of converting Africans to Christianity and “civilizing” them.¹⁶

9. Civilization. The Euro-American ideals of “civilization” and their assumed superior humanity and cultures were also crucial aspects of their claims over Indigenous peoples and were used to justify Discovery. Euro-Americans claimed that God had directed them to bring civilization, education, and religion to Indigenous peoples around the world. Thus, not surprisingly, the American mantra and ideals of “Manifest Destiny” that developed in the 1840s were used to justify the United States domination of Indian nations and peoples. Manifest Destiny and American federal Indian policies pursued the goal of “civilizing” Indians for over two centuries. For example, the United States enacted the Civilization Fund Act in 1819. Furthermore, Chile, Brazil, and Argentina also developed their own colonial policies akin to “Manifest Destiny” and justified their domination of Indigenous nations and peoples due to the alleged need to convert and “civilize” Native peoples.

10. Conquest. By the 1400s, international law already included ideas about the law of war when the Doctrine of Discovery began to be developed. The law of war allowed a conquering Christian country to acquire all the public lands, wealth, and rights of a defeated Christian monarch. Euro-American countries applied this same principle to their victories over Indigenous nations. But I perceive that *Johnson v. M’Intosh* also defined a second meaning to this “conquest” element. The 1823 opinion by Chief Justice John Marshall implied that conquest is a term-of-art and it also meant that the mere arrival in new lands and a first discovery by Euro-American countries was the equivalent of a military conquest. Thus, a first

¹⁶ Miller & Stitz, “The International Law of Colonialism in East Africa,” 49-55.

Discovery automatically passed land, property, and sovereign rights over Indigenous nations, their lands, and their assets to the discovering Euro-American country.

Identifying and reciting these ten elements of Discovery that *Johnson v. M'Intosh* relied on demonstrates the horrific impacts the international law of colonialism and the Doctrine of Discovery had on world history and on Indigenous nations and peoples. The Doctrine is still the law and is very relevant to the modern-day existence and rights of Indigenous nations and peoples all around the world. The United States Supreme Court and the lower federal and state courts in the U.S. still rely on the principles of Discovery and continue to cite *Johnson v. M'Intosh*. Property law and federal Indian law in the United States are intimately intertwined with this law of colonialism. The Doctrine directed the history of religious, legal, and political practices by all the colonial powers and it largely remains the law in colonized countries today. I cannot help but point out here the vestiges of the Doctrine in modern-day political actions as evidenced in 2007 when Russia claimed the seabed of the Arctic Ocean, and the enormous oil and gas resources located there, by planting its flag on the ocean floor. Moreover, in 2010, China also planted its flag on the bottom of the South China Sea to claim sovereignty over those waters. And, how can we not ask: what exactly does it mean that the United States planted its flag on the moon in 1969?

In conclusion, the international law Doctrine of Discovery has been the legal tool that authorized and justified the colonization, domination, and attempted destruction of Indigenous nations and peoples for over 600 years. Isn't it way past time for countries and peoples around the world to take concrete steps to ameliorate that situation?